

COUR PERMANENTE DE JUSTICE INTERNATIONALE

SÉRIE A/B

ARRÊTS, ORDONNANCES ET AVIS CONSULTATIFS

FASCICULE N° 70

AFFAIRE DES PRISES D'EAU
A LA MEUSE

ARRÊT DU 28 JUIN 1937

1937

JUDGMENT OF JUNE 28th, 1937

PERMANENT COURT OF INTERNATIONAL JUSTICE

SERIES A./B.

JUDGMENTS, ORDERS AND ADVISORY OPINIONS

FASCICULE No. 70

THE DIVERSION OF WATER
FROM THE MEUSE

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SOCIÉTÉ D'ÉDITIONS
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THE DIVERSION OF WATER FROM THE MEUSE

Interpretation of the Treaty of May 12th, 1863, between Belgium and the Netherlands concerning the régime of diversions of water from the Meuse : this Treaty did not invest either contracting Party with a right of control which the other Party might not exercise.

The obligation to take water solely through the feeder at Maestricht is imposed on both contracting Parties ; the normal use by the Parties of locks is not inconsistent with the Treaty, provided that such use does not prejudice the régime instituted by the Treaty ; subject to the same condition, each Party is entitled to alter or enlarge the canals coming under the Treaty, so far as concerns canals which are situated in its territory and do not leave it.

The Netherlands were within their rights in altering the level of the Meuse at Maestricht, without the consent of Belgium, since the régime set up by the Treaty was not thereby prejudiced.

The Juliana Canal cannot be considered as a canal below Maestricht, within the meaning of the Treaty.

JUDGMENT.

Present: M. GUERRERO, President; Sir CECIL HURST, Vice-President; Count ROSTWOROWSKI, MM. FROMAGEOT, DE BUSTAMANTE, ALTAMIRA, ANZILOTTI, NEGULESCO, Jhr. VAN EYSINGA, MM. NAGAOKA, CHENG, HUDSON, DE VISSCHER, Judges.

In the case concerning the diversion of water from the river Meuse,

between

the Government of the Kingdom of the Netherlands, represented by M. B. M. Telders, as Agent,

and

the Government of the Kingdom of Belgium, represented by M. de Ruelle, as Agent,

The Court,

composed as above,

delivers the following judgment :

By an Application instituting proceedings filed in the Registry of the Court on August 1st, 1936, in accordance with Article 40 of the Statute and Article 32 of the Rules of Court, the Government of the Kingdom of the Netherlands has instituted before the Court proceedings in regard to the diversion of water from the river Meuse. In order to establish the jurisdiction of the Court, the Applicant relies on the declarations made by the Netherlands and by Belgium recognizing as compulsory the jurisdiction of the Court, in conformity with Article 36, paragraph 2, of the Statute of the Court.

According to the Application, the subject of the dispute is the question whether, on the one hand, the execution by Belgium of various works in connection with the construction of the Albert Canal and, on the other hand, the manner in which, without the consent of the Netherlands, Belgium at present supplies and appears to intend in future to supply with water existing or projected canals in the north of her territory, are consistent with the rights ensuing to the Netherlands from the Treaty signed at The Hague on May 12th, 1863, establishing the régime for taking water from the Meuse.

After a brief statement of the facts and of the grounds on which the claim is based, the Application asks the Court :

“I. To adjudge and declare that :

(a) the construction by Belgium of works which render it possible for a canal situated below Maastricht to be supplied with water taken from the Meuse elsewhere than at that town is contrary to the Treaty of May 12th, 1863 ;

(b) the feeding of the Belgian section of the Zuid-Willemsvaart, of the Campine Canal, of the Hasselt branch of that canal and of the branch leading to Beverloo Camp, as also of the

Turnhout Canal, through the Neerhaeren Lock with water taken from the Meuse elsewhere than at Maestricht, is contrary to the said Treaty ;

(c) Belgium's project of feeding a section of the Hasselt Canal with water taken from the Meuse elsewhere than at Maestricht is contrary to the said Treaty ;

(d) Belgium's project of feeding the section of the canal joining the Zuid-Willernsvaart to the Scheldt between Herenthals (Viersel) and Antwerp with water taken from the Meuse elsewhere than at Maestricht is contrary to the said Treaty.

II. To order Belgium

(a) to discontinue all the works referred to under I (a) and to restore to a condition consistent with the Treaty of 1863 all works constructed in breach of that Treaty ;

(b) to discontinue any feeding held to be contrary to the said Treaty and to refrain from any further such feeding."

On August 1st, 1936, notice of the Netherlands Government's Application was given to the Belgian Government ; on August 7th the communications provided for in Article 40 of the Statute and Article 34 of the Rules were despatched.

As the Court, at the beginning of the proceedings, included on the Bench no judge of Belgian nationality, the Belgian Government availed itself of its right under Article 31 of the Statute, and nominated in that capacity Professor Ch. De Visscher, who was subsequently elected, on May 27th, 1937, by the Assembly and Council of the League of Nations to be a member of the Court.

As the Court was not sitting, the acting President, by an Order made on August 6th, 1936, fixed the time-limits for the filing of the Memorial, Counter-Memorial, Reply and Rejoinder. The documents of the written proceedings were duly filed within the time-limits thus fixed, the last of which, namely that for the filing of the Rejoinder, expired on April 12th, 1937; the case thus became ready for hearing on that date.

In its Memorial, the Netherlands Government repeated the submissions made in the Application.

In the Counter-Memorial, the Belgian Government presented the following submissions :

"May it please the Court,

To declare the submissions of the Applicant to be ill-founded,

To adjudge and declare :

1. That the mere *possibility* of works being used for purposes inconsistent with the Treaty of May 12th, 1863, governing the taking of water from the Meuse, does not suffice to justify the condemnation of such works and to secure their demolition, since bad faith may not be presumed ;

2. That the feeding of the Zuid-Willemsvaart and the canal joining the Meuse and the Scheldt and its branches is not rendered incompatible with the Treaty mentioned above by the fact that lockage water arising from the working of the Neerhaeren Lock—operated *bona fide* for the passing of boats—is added to the water from the Meuse coming from the intake at Maestricht—as the Neerhaeren Lock cannot be treated more unfavourably than the Bosscheveld Lock ;

3. No breach of Belgium's engagements under the above-mentioned Treaty will result from the circumstance that after the Albert Canal is brought into use, water derived from the Meuse near Liège will, between Hasselt and lock IV, pass along the section of that canal coinciding with a section of the Hasselt branch of the canal joining the Meuse and the Scheldt ;

4. Similarly, no inconsistency with Belgium's engagements will result from bringing water derived from the same source into the section of the Albert Canal between Pulle and Antwerp which coincides with the canal joining the Meuse and the Scheldt ;

May it also please the Court, adjudicating upon a counter-claim in accordance with Article 63 of the Rules of Court,

To adjudge and declare :

1. That the Borgharen barrage has been constructed in breach of the stipulations of this same Treaty which is alleged by the Netherlands Government to have been disregarded by the Belgian Government as regards certain stipulations ; that is to say, that the local situation at Maestricht provided for by the Treaty of 1863 has been altered by the unilateral decision of the Netherlands Government ; that this alteration has rendered the proper application of the Treaty impossible, because the level of the Meuse has been raised by the Borgharen barrage and the water-gauge which had been placed there in accordance with the Treaty to enable the diversion of water to be regulated in accordance with the level of the water has been submerged ;

2. That the Juliana Canal, being a canal below Maestricht, within the meaning of Article I of the Treaty, is subject, as regards the supply of water to it, to the same provisions as the canals on the left bank of the Meuse below Maestricht ;

3. To reserve the rights accruing to Belgium from the breaches so committed."

In its Reply, the Netherlands Government prayed the Court :

"I. Rejecting all submissions to the contrary,
to give judgment in accordance with the submissions formulated by the Netherlands Government in its Memorial presented to the Court on October 31st, 1936.

II. To declare that the submissions of the counter-claim presented by Belgium are ill-founded.

III. To adjudge and declare,

1. That the establishment and working of the Borgharen barrage is not inconsistent with the Treaty of May 12th, 1863, above mentioned and that no right or interest on the part of Belgium is thereby injured ;

2. That the Juliana Canal is not, as regards its water supply, subject to the same provisions as the Zuid-Willemsvaart and the other canals on the left bank of the Meuse below Maestricht ;

3. That in any case the feeding of the Juliana Canal has not been and is not inconsistent with the Treaty of 1863 and that the mere fact that it would be possible for the Netherlands to use certain locks on this canal in a manner contrary to that Treaty does not in itself constitute a breach of that Treaty."

In its Rejoinder, the Belgian Government prayed the Court :

"Rejecting all submissions to the contrary,
To find in favour of the Respondent's submissions of January 28th, 1937.

Alternatively,

In case the Court should be unable on certain points to find in accordance with the submissions of the Respondent,

To declare in any case that the Applicant is committing an abuse of right (*abus de droit*) in invoking the Treaty of May 12th, 1863, in order to protect new interests (the Juliana Canal and the canalized Meuse) which were not contemplated at the time of the conclusion of that Treaty, while the interests which that Treaty was intended to protect are not in any way threatened ;

As a second alternative,

To declare that, by constructing certain works contrary to the terms of the Treaty, the Applicant has forfeited the right to invoke the Treaty against the Respondent ;

As a third alternative,

To declare that the works forming part of the Albert Canal, including the Briegden-Neerhaeren section, are merely the necessary consequences of the works in connection with the Juliana Canal. By constructing the latter canal, the Netherlands Government has caused it to be believed that a new situation has arisen ; that is to say, that the Netherlands Government is abandoning the use of the common section of the Meuse as a waterway ; it is not entitled to complain because the Respondent has taken action in accordance with this new situation ;

As a fourth alternative,

To declare that the Treaty of 1863 has lapsed as a result of the action of the Applicant in carrying out works which have altered the situation on which the Treaty was based, that is to say, in particular, the raising of the level of the Meuse at Maestricht and the construction of a new waterway which deprives the

common section of the Meuse of its function as a navigable waterway."

In the course of public sittings held on May 4th, 5th, 7th, 10th, 11th, 12th, 18th, 20th and 21st, 1937, the Court heard:

M. Telders, Agent for the Netherlands Government,
and M. de Ruelle, Agent, Maître Marcq, Counsel, and
M. Delmer, technical adviser for the Belgian Government.

The submissions presented in the documents of the written proceedings were maintained in their entirety on either side at the oral proceedings.

Numerous documents in support of their contentions have been produced on behalf of each Party as annexes to the Application and to the documents of the written proceedings and in the course of the oral proceedings¹.

At the hearing on May 7th, 1937, the Agent for the Belgian Government suggested that the Court should pay a visit to the locality in order to see on the spot all the installations, canals and waterways to which the dispute related. This suggestion met with no opposition on the part of the Netherlands Government, and the Court decided, by an Order made on May 13th, 1937, to comply with it. Adopting the itinerary jointly proposed by the Agents of the Parties, the Court carried out this inspection on May 13th, 14th and 15th, 1937. It heard the explanations given by the representatives who had been designated for the purpose by the Parties and witnessed practical demonstrations of the operation of locks and of installations connected therewith.

* * *

The questions at issue in the present case depend on the interpretation and application of the Treaty which was concluded between Belgium and the Netherlands on May 12th, 1863², and came into force on July 14th of that year. The purpose of this Treaty is defined in its Preamble as being "to settle permanently and definitively the régime governing diversions of water from the Meuse for the feeding of navigation canals and irrigation channels" (*de régler d'une manière stable et définitive le régime des prises d'eau à la Meuse pour l'alimentation des canaux de navigation et d'irrigation*).

The Treaty was concluded because for a long time the two countries had been unable to agree on a variety of questions connected with the use of the waters of the Meuse.

The Meuse is an international river. It rises in France in the Department of the Haute-Marne, leaves French territory

¹ See list in Annex.

² For text of this Treaty, see Annex.

near Givet, crosses Belgium, forms the frontier between the Netherlands and Belgium below Lixhe and enters Netherlands territory a few kilometres above Maestricht. Between Borg-haren (a few kilometres below Maestricht) and Wessem-Maas-bracht, the Meuse again forms the frontier between Belgium and the Netherlands, then below Wessem-Maasbracht both banks of the river are in Netherlands territory.

Until it reaches Venlo, in the Netherlands, the course of the river is rapid and, in general, the river is shallow. It is a river which is fed by rainfall, and not by the melting of glaciers; consequently the flow of water varies greatly. In its natural condition the Meuse above Venlo is of no great assistance to navigation. Though for the most part it has been canalized, the most important function of the Meuse, at any rate in Belgium and in the Netherlands, is that of a reservoir for other waterways. As a result of the geological formation, canalization works between Liège and Venlo are difficult and costly. On the other hand, the people of the territory through which the Meuse flows are accustomed to make use of water transport, and where canals have been constructed for this purpose they must in the main be supplied with water from the Meuse.

In the XVIIth century, and again during the Napoleonic era, the construction of a canal from Antwerp via Venlo to the Rhine was contemplated. Though only a small part of this canal was actually constructed, the subsequent schemes which were carried into effect were in part founded on the same plans.

After the constitution in 1815 of the Kingdom of the Netherlands, William I initiated the construction of a canal from Maestricht to Bois-le-Duc. This canal, known as the Zuid-Willemsvaart, was brought into use about the year 1826. The water to feed the canal was derived from the Meuse at Maestricht, through an intake known as lock 20.

During the troubled conditions which prevailed between 1830 and 1839, the supply of water to the Zuid-Willemsvaart was temporarily interrupted by the military authorities at Maestricht, and in order to secure a supply of water for the canal a new intake was created at Hocht by the inhabitants. After the separation of the Netherlands and Belgium, the place at which the Hocht intake was situated became Belgian territory.

In 1845, under a treaty concluded between the Netherlands and Belgium in that year, a new canal was constructed from Liège to Maestricht. This new canal constitutes, in effect, a prolongation of the Zuid-Willemsvaart to Liège, and had formed part of the original plans of King William I. It connects

with the Zuid-Willemsvaart at a spot inside the fortifications of Maestricht, close to lock 20.

After the completion of the Liège-Maestricht Canal, the Zuid-Willemsvaart was fed from three different sources: firstly by water which came from the Liège-Maestricht Canal; secondly, by water obtained directly from the Meuse through lock 20; and, thirdly, by water also obtained directly from the Meuse through the Hocht intake.

At first there seems to have been no trouble with regard to the supply of water for the Zuid-Willemsvaart. Subsequently, however, the Belgian Government commenced the construction of a series of new waterways, running westward from the northern end of the Belgian section of the Zuid-Willemsvaart so as to effect a junction with the river Scheldt and to provide means of communication for the district of the Campine. This series of canals includes the Canal de la Campine, the Canal de Turnhout, the Canal de Hasselt, and the Canal du Camp de Beverloo.

The Campine is a heathy district with a soil of a porous nature, and owing to this latter circumstance large quantities of water were required for keeping the Canal de la Campine supplied. A great deal of water leaked away.

The sandy and unfertile nature of the Campine district led the Belgian Government to initiate extensive irrigation schemes. The idea prevailed at the time that if only it could be supplied with water, this district might be converted into a fertile and prosperous agricultural area. These irrigation works caused flooding in the Netherlands district of Brabant and constituted one of the many sources of disagreement that prevailed between the two countries at the time when the Treaty of 1863 was concluded.

As the canals of the Campine area came into use and so long as the extensive irrigation schemes were still considered feasible, Belgium desired to obtain large supplies of water. The only supplies available were derived from the Zuid-Willemsvaart and, therefore, ultimately from the Meuse. Neither the supplies drawn from the intake at Hocht, nor the lock-water which came into the Zuid-Willemsvaart from the Meuse, were adequate to supply the quantities which Belgium sought to draw out at the northern end of the canal. She therefore found herself obliged to construct at the side of the Hocht Lock a lateral channel so that water could be drawn from the Liège-Maestricht Canal irrespective of the use of the lock for the normal purposes of navigation. By so doing she obtained a sufficient quantity of water but she converted a part of the Zuid-Willemsvaart into a waterway more like a swiftly flowing river than a canal. The rapidity of the current in the canal impeded the navigation, and though efforts were

made to allow these additional supplies to pass into the canal at night-time, when the barge traffic was not in progress, the use of the canal for traffic was gravely inconvenienced.

For some ten years the technical experts of the two Governments searched for a solution of the problem, the condition of things which had arisen on the Zuid-Willemsvaart being equally inconvenient to the barge traffic of both countries. Two successive Mixed Commissions proved abortive, and a treaty, which was negotiated and signed in 1861, failed to secure ratification because it was rejected by the Netherlands Second Chamber. It was not until 1863 that the two countries were able to conclude a treaty which was acceptable to both sides. This Treaty, dated May 12th, 1863, is still in force and constitutes the treaty which has to be applied by the Court in the present case.

It will be of assistance towards an understanding of the general economy of the Treaty of 1863 to give a short description of the unratified agreement of 1861.

Both treaties were worked out upon the footing that Belgium must have, in order to supply her requirements, a definite quantity of water and, so far as concerns the Netherlands, that this quantity of water would not be such as to injure Netherlands interests. No stable situation could be achieved as regards the use of the waters of the Meuse unless these needs and interests were recognized. The mere provision of the water, however, was not the only element to be taken into account; there were the interests of navigation in the canals, particularly in the Belgian section of the Zuid-Willemsvaart, a waterway which was of common interest to both Parties; there were also the interests of the navigability of the Meuse itself in the sector below Maastricht, where there was no lateral canal, except in so far as the Zuid-Willemsvaart itself served that purpose.

The 1861 treaty was drafted on the following basis: the Netherlands undertook to allow a fixed quantity of water to pass into the Zuid-Willemsvaart through the lock at Maastricht. (The actual quantity was 7 cubic metres per second in winter; $5\frac{3}{4}$ per second in summer.) This water was to come from the Liège-Maastricht Canal and was, therefore, taken from the Meuse at Liège. Any quantity of water coming from the Liège-Maastricht Canal over and above the amounts so fixed was to be turned into the river. Out of the water so passed into the Zuid-Willemsvaart, the Netherlands were to get $1\frac{1}{2}$ cubic metre per second, which was to be evacuated through the lock at Weert (in Netherlands territory). There was no provision in the 1861 treaty which affected the intake at Hocht. Belgium remained free to take what she could through that

intake. During the seasons when the Meuse is low, the amount of water which Belgium could obtain at Hocht was not, in reality, very great, because the level of the canal was so little below the level of the river that the amount that could pass was necessarily restricted.

This treaty appears to have been rejected because, amongst other reasons, the authorities of the Netherlands province of Limburg pointed out that it did not solve the problems which interested them, particularly the excessive speed of the current in the Zuid-Willemsvaart.

The solution of the difficulties between the two countries as regards the waters of the Meuse was ultimately found by approaching them on a much wider basis. By including the solution of various other problems which were affecting the relations between the two countries at that date means were found justifying each Party in making concessions which it would not have felt justified in making unless it had received satisfaction in other directions. The treaty with regard to the Meuse became part of a settlement embracing discontinuance of the tolls on the Scheldt and the commercial relations between the two countries.

The three treaties into which the arrangement of 1863 was divided were concluded on the same day, and the exchange of ratifications also took place on the same date—July 14th, 1863—and was recorded in a single instrument, but there is no juridical connection between the three; each of the three treaties is entirely independent of the others; in its application and interpretation the treaty with regard to the waters of the Meuse, therefore, stands entirely by itself. The interdependence is found only in the fact that the concessions made by one or other of the Governments in one of the treaties would not have been made without the concessions made by the other Government in the other treaties.

As regards the treaty relating to the waters of the Meuse, the acute problem as stated above had been the excessive speed of the current developed in the Zuid-Willemsvaart owing to the amount of water which Belgium was taking from it. The Treaty of 1863 surmounted this difficulty by the combined effect of three sets of stipulations: by raising the level of the canal all the way from Maastricht to Bocht, so as to increase the transverse section and thereby enable more water to pass along without increasing the speed of the current; by concentrating in one new intake the withdrawal of water from the Meuse, this new intake being situated higher upstream where it could feed the canal despite the fact that the level of the canal was raised; and by enlarging the programme of works to be carried out in the joint section of the Meuse so that more water could

be withdrawn from the Meuse without injury to the navigability of the joint section of the river, a subject which at that time was of interest to both countries.

The new intake was located on Netherlands territory. It was not without great reluctance that the Belgian Government accepted the plan that there should be a single intake and that situated on foreign territory.

For some time after its conclusion, the Treaty of 1863, subject to some technical modifications introduced in 1873, must have satisfied the requirements of both Parties. By the close of the century, however, it was becoming clear that larger and better canals were required in order to meet the commercial development which was taking place in the Netherlands and Belgium, particularly as regards the development of the Netherlands coalfields in the province of Limburg.

In 1906, a joint commission was appointed, on the suggestion of the Netherlands Government, to consider works for the improvement of the navigation of the Meuse. At the time when the Netherlands Government suggested the appointment of this Commission, it would appear that they had in view works which could not be carried out without the concurrence of both Governments.

When the report of this Commission had been received in 1912, the Netherlands Government proposed that the two Governments should together undertake the canalization of the joint section of the Meuse. Negotiations on this subject had not been completed at the time when the war of 1914-1918 broke out, as Belgium would only agree to participate in this work if satisfaction were given to her on certain other points.

In 1921 a project for the construction of a lateral canal on the right bank of the Meuse from Maestricht to Maasbracht was submitted to the Chambers by the Netherlands Government. This was a work to be carried out entirely on Netherlands territory and at the expense of the Netherlands. It embodied what is now the Borgharen barrage and the Juliana Canal. It led to diplomatic correspondence between the Netherlands and Belgium, in which Belgium maintained that such works would prejudice the navigation on the joint section of the Meuse and would interfere with the working of the 1863 Treaty. She therefore maintained that this scheme could not be carried out without her consent.

Though the Parties were not able, in the diplomatic discussions which followed, to come to an agreement as to the points raised by the Belgian Government, other negotiations which were already in progress led to the signature in 1925 of a new and comprehensive treaty which would have enabled the waterways

desired on either side to be constructed. This treaty however was rejected by the Netherlands First Chamber.

After the rejection of the treaty of 1925, the Netherlands proceeded to construct and complete the Juliana Canal, a waterway which would enable barges of larger size to reach Maestricht and from there would make contact with the Liège-Maestricht Canal. She also constructed a new lock, the Bosscheveld Lock, situated just below the intake constructed at Maestricht under the Treaty of 1863 and giving access to the Zuid-Willemsvaart from the Meuse. This new lock was brought into use in September 1931. The Borgharen barrage had been finished in 1929 and the Juliana Canal was opened to navigation in 1934.

Faced with the prospect of the completion of the Juliana Canal, the Belgian Government decided that they must construct a canal from Liège to Antwerp, and laid before the Belgian Parliament a scheme for the construction of what is now known as the Albert Canal. The submission of this scheme to the Belgian Parliament provoked an enquiry from the Netherlands Government as to the feeding of this great new waterway. Discussions followed through the diplomatic channel, but they led to no result, as the Netherlands were unable to give satisfaction to Belgium as regards the construction of a new waterway to improve the communications between Antwerp and the Rhine.

The construction of the Albert Canal was commenced in 1930; it is not yet finished.

The Albert Canal is intended to connect Liège with Antwerp. It will be fed with water obtained from the Meuse immediately above a barrage constructed at Monsin. For about sixteen kilometres it practically follows the course of the old Liège-Maestricht Canal. It then turns north-westward and is carried in a deep cutting through the hills till it reaches Briegden. From Briegden a junction canal, which is already in use, runs to Neerhaeren where connection is established with the Belgian section of the Zuid-Willemsvaart through the Neerhaeren Lock.

From Briegden the Albert Canal will be carried by a section which is not yet completed to a spot near Hasselt. There, just north of the Curange Lock, it will join the existing Hasselt branch of the Campine Canal, which will be reconstructed and considerably widened and deepened, and will follow the line of that branch as far as Quaedmechelen. From Quaedmechelen the Albert Canal will be carried on via Herenthals to Viersel, where it takes the place of the existing Canal de la Campine which has been in the same way reconstructed, widened

and deepened. Through the new Wyneghem Lock it will connect with the Antwerp waterways. A part of the western end of this section is already in use.

As no further progress could be made in the settlement of the points at issue between the two States, the Netherlands initiated the present proceedings against Belgium in the Court by an Application dated August 1st, 1936, based on the ground that some of the works already executed or to be executed by Belgium in connection with the Albert Canal constituted an infringement of the Treaty of 1863. Belgium in due course raised by her counter-claim the question whether the Juliana Canal and the Borgharen barrage were themselves compatible with the Treaty of 1863.

* * *

From the history of the dispute given above, it will be seen that one of the difficulties in achieving a settlement of the differences between the two States has been the Belgian desire to obtain the Netherlands' consent to the construction of a new canal connecting Antwerp and the Rhine, a point upon which one may infer that the Netherlands Government have felt themselves unable to accede to the wishes of the Belgian Government because of the commercial rivalry between Antwerp and Rotterdam. With this aspect of the question the Court is in no way concerned. Its task is limited to a decision on the legal points submitted to it as to whether or not certain works constructed by the Belgian Government do or do not infringe the Treaty of 1863, and, as regards the Belgian counter-claim, as to whether or not certain works constructed by the Netherlands Government do or do not constitute an infringement of the Treaty of 1863.

*

In the course of the proceedings, both written and oral, occasional reference has been made to the application of the general rules of international law as regards rivers. In the opinion of the Court, the points submitted to it by the Parties in the present case do not entitle it to go outside the field covered by the Treaty of 1863. The points at issue must all be determined solely by the interpretation and application of that Treaty.

*

Before proceeding to consider in detail the dispute submitted to the Court, it will be well to make a brief survey of the provisions of the Treaty of 1863 which must be applied in the decision of the case.

Article I provides for the construction below Maestricht at the foot of the fortifications of a new intake which will constitute the feeding conduit for all canals situated below that town and for irrigation in the Campine and in the Netherlands. Article II provides that the lock at Hocht (No. 19) is to be suppressed and replaced by a new lock in the Zuid-Willemsvaart above the intake provided for in Article I. The part of the canal between the site of the old lock at Hocht and the site of the new lock was to be enlarged and deepened so as to be of the same dimensions and depth as the reach from Hocht to Bocholt. Article III provides that the level of the canal between Maestricht and Bocholt was to be raised so that the quantity of water prescribed by the succeeding Articles IV and V could pass along the canal without raising the average current to a speed exceeding 25 to 27 centimetres per second. Article IV fixed the quantity of water to be taken from the Meuse at ten cubic metres per second when the level of the river was above the normal low level; when at or below the normal low level it was fixed at $7\frac{1}{2}$ cubic metres from October to June and 6 cubic metres from June to October. Normal low level was defined by reference to the gauge on the bridge at Maestricht and corresponded to a minimum depth between Maestricht and Venlo of 70 centimetres. A gauge was to be fixed at the mouth of the new intake, and no further use was to be made of the intake at Hocht. Under Article V the Netherlands was to have a fixed proportion (2 or $1\frac{1}{2}$ cubic metres) out of the total quantity of water fixed by Article IV as the amount to be withdrawn from the Meuse by the new intake; the Netherlands share of this water was to pass through lock 17 at Loozen. The second paragraph of this Article gives the Netherlands a right to increase the water to be withdrawn from the Meuse at Maestricht, provided the speed of the current in the canal was not raised above that stipulated in Article III.

Article IX provided for the preparation and execution of a programme of works in the bed of the Meuse between Maestricht and Venlo over a series of years, Belgium to pay two-thirds and the Netherlands one-third of the costs.

The remaining articles are of less importance in connection with the present case.

* * *

In the first submission *I a* of the Netherlands' Memorial, the Agent of the Netherlands Government asks the Court:

“To adjudge and declare that

(a) the construction by Belgium of works which render it possible for a canal situated below Maestricht to be supplied with water taken from the Meuse elsewhere than at that town is contrary to the Treaty of 1863.”

The intention of this submission is made clearer by the explanations which are given in the Memorial:

“The infringements of the régime established by the Treaty in 1863 forming the subject of the complaint of the Netherlands Government may be classified under two heads:

(A) Infringements of the Netherlands’ privilege of control over diversions of water from the Meuse by means of the Maestricht intake resulting from the construction of works making it possible to feed canals situated below Maestricht with water taken from the Meuse elsewhere than at that town; (B) Infringements of the treaty regulations governing the allocation of Meuse water resulting from the feeding of canals situated below Maestricht with water taken from the Meuse in excess of the quantities fixed and allotted to Belgium by the Treaty of 1863.”

Submission I *a* refers to infringements of this so-called privilege of control claimed by the Netherlands Government.

The nature of this Netherlands claim has not been set out with great precision, either in the written proceedings or in the oral arguments. The Court understands it as a claim to a special privilege going beyond the power of supervision which the Netherlands necessarily derive from the fact that the intake is situated in Netherlands territory. There can be no doubt that, so far as the right of supervision is derived from the position of the intake on Netherlands territory, the Netherlands, as territorial sovereign, enjoys a right of supervision which Belgium cannot possess.

What the Netherlands Agent has claimed on behalf of his Government is not merely to be able to control what happens in their own territory, but to control the supply of water drawn from the Meuse to feed the system of canals referred to in the Treaty: the important thing for the Netherlands being, not the ability to supervise the mere working of the Maestricht feeder, but the power to make sure at any time that the quantities of water drawn from the Meuse to supply the canals below Maestricht do not exceed the total quantities fixed in the Treaty. To this end, and in order to effect that full control of all supplies from the Meuse for the feeding of these canals, the right of supervision arising from the position of the intake in Netherlands territory had to be supplemented, and is supplemented, by an obligation *to refrain from certain action* imposed upon Belgium, an obligation not to construct

works by means of which she could, apart from the Maestricht feeder, supply one or more canals situated below that town. The Netherlands Agent finds in Article I of the Treaty the justification for that claim when it provides that the Maestricht feeder should be "the", that is to say, the only, feeder for all canals situated below Maestricht. It follows, according to his contention, that the mere fact of constructing in Belgian territory a second feeder is, in itself, a breach of the Article. It is of no importance whether actual use is made of this feeder or whether it is left idle. Once a second feeder exists the Maestricht feeder is no longer the only one and the Treaty of 1863 is thereby broken.

It was in support of this view that the Netherlands Agent in his argument laid such stress on the fact that the design of the Neerhaeren Lock in the Briegden-Neerhaeren junction canal embodied side-channels for filling and emptying the lock chamber which by the simple expedient of removing an electric interlocking device could be converted into a lateral conduit, enabling water to be conveyed in large quantities from the upper to the lower reach, irrespective of any use of the lock for navigational purposes. The Netherlands Agent did not suggest that the side-channels had been used in the past for this purpose, or were being so used at present. It was in the fact that by this simple method the side-channels *could* be converted into a lateral conduit and thereby render possible without the knowledge of the Netherlands Government the passage of water into the Zuid-Willemsvaart, that the Netherlands Agent saw a violation of the right of control conferred upon his Government.

The Netherlands contention necessarily implies that the Treaty of 1863 intended to place the Parties in a situation of legal inequality by conferring on the Netherlands a right of control to which Belgium could not lay claim. The Netherlands Agent, with regard to the Belgian Government's counter-claim, stated in his reply that Belgium was not entitled to dispute the lawfulness of the works constructed by the Netherlands merely on the ground that such works would make it possible to feed a canal situated below Maestricht with water diverted from the river elsewhere than at the treaty feeder, because Belgium did not possess any right of control similar to that conferred on the Netherlands by the Treaty.

The Court is unable to accept as well-founded a contention which would alter the character of the Treaty of 1863 and considerably enlarge the scope of the actual terms used by its authors; for that Treaty is an agreement freely concluded between two States seeking to reconcile their practical interests with a view to improving an existing situation rather than to settle a legal dispute concerning mutually contested rights.

It would only be possible to agree with the contention of the Netherlands Agent that the Treaty had created a position of inequality between the contracting Parties if that were expressly indicated by the terms of the Treaty; but the text of Article I is not sufficient to justify such an interpretation. The text of this Article is general; it furnishes no evidence of any differentiation between the two Parties. Article I is a provision equally binding on the Netherlands and on Belgium. If, therefore, it is claimed on behalf of the Netherlands Government that, over and above the rights which necessarily result from the fact that the new intake is situated on Netherlands territory, the Netherlands possess certain privileges in the sense that the Treaty imposes on Belgium, and not on them, an obligation to abstain from certain acts connected with the supply to canals below Maestricht of water taken from the Meuse elsewhere than at the treaty feeder, the argument goes beyond what the text of the Treaty will support.

The Court finds that none of the documents produced by the Netherlands Government in support of their claim of control controverts the conclusion reached by the Court and that, on the contrary, some of these documents confirm that conclusion.

For the above reasons, the submission I *a* of the Netherlands Memorial must be rejected.

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The Netherlands Government in its submission formulated under I *b* in the Netherlands Memorial prays the Court:

“To adjudge and declare

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(*b*) that the feeding of the Belgian section of the Zuid-Willemsvaart, of the Campine Canal, of the Hasselt branch of that canal and of the branch leading to Beverloo Camp, as also of the Turnhout Canal, through the Neerhaeren Lock with water taken from the Meuse elsewhere than at Maestricht, is contrary to the said Treaty [Treaty of May 12th, 1863].”

It will be observed that, in this submission, the Netherlands Government does not specify the particular provision of the

Treaty alleged to be infringed by the feeding of the Zuid-Willemsvaart, the Campine Canal, its Hasselt branch, its branch leading towards Beverloo Camp and the Turnhout Canal, through the Neerhaeren Lock, with water taken from the Meuse elsewhere than at Maestricht.

The Treaty brought into existence a certain régime which results from all of its provisions in conjunction. It forms a complete whole, the different provisions of which cannot be dissociated from the others and considered apart by themselves.

When the Treaty of 1863 is examined in this way it is seen that, more particularly in Articles I, III, IV and V, it established a treaty régime governing, to quote the words of the Preamble, "diversions of water from the Meuse for the feeding of navigation canals and irrigation channels"; this régime was instituted both by the construction at Maestricht in Netherlands territory of the new intake on the Meuse, which was to constitute the feeder for all the canals situated below that town, and by the fixing of the volume of water to be discharged into the Zuid-Willemsvaart at a quantity which would maintain a minimum depth in that canal and would ensure that the velocity of its current did not exceed a maximum of 0.25 metre to 0.27 metre per second. The canals which the Treaty thus had in view when it referred to "all canals situated below Maestricht", are the Zuid-Willemsvaart and the canals which branch off from it and are fed by it.

Any work which disturbs the situation as established by the Treaty constitutes an infraction of the latter, and this holds good for works above Maestricht just as much as for works situated below Maestricht.

It is evident that neither the functioning of the former intake at Hocht, in Belgian territory, nor of any intake other than the treaty feeder would have been compatible with the régime thus established. Accordingly, it was laid down (Art. I) that the intake at Maestricht would constitute "the" feeder—that is to say, the only feeder—and that no further use would be made of the intake at Hocht (Art. IV, last para.).

In this connection, it is necessary to consider whether the passage of water through a lock, instead of through the new intake, constitutes an infraction of Article I.

A lock is not, in itself, a feeder. A lock is a construction designed to retain the water in an upper reach and to enable barges to pass from this upper reach to a lower reach, and vice versa. It functions intermittently, with more or less frequency, according as the traffic is more or less intense. If the waterway is a canal, it is manifest that if the canal is not to run dry, more or less rapidly according to its length, the lock cannot function unless the summit-level reach of the

canal is itself fed by an intake providing a sufficient supply of water.

It can scarcely be contested that water discharged by a lock—or lock-water—which passes in this way from reach to reach, constitutes a means, and no doubt the normal means, of feeding the successive reaches of a canal.

It has been argued on behalf of the Belgian Government that it cannot have been the intention of the Treaty that the existence and functioning of a lock should be considered as an infraction of the Treaty, for the following reason. The Treaty itself lays down in Article II that lock No. 19 at Hocht is to be reconstructed at a different site. This lock 19 is the one which establishes communication between the Zuid-Willemsvaart and the Liège-Maestricht Canal. Every time that the lock is operated—and it is clear that the Treaty intended that shipping should continue to use this route—a certain quantity of lock-water, originally derived from the Meuse, though not through the treaty feeder, is necessarily discharged into the Zuid-Willemsvaart; consequently, lock-water—i.e., water passing through a lock in the course of its normal functioning—cannot be equivalent to the “feeding” of the canal which is forbidden by Article I.

On the other hand, it has been contended, on behalf of the Netherlands Government, that the foregoing argument does not take sufficiently into account the small dimensions of lock 19, nor the fact that the average total volume of lock-water discharged by the daily normal functioning of the lock, is less than the margin of error allowed in measuring the ten cubic metres per second fixed in Article IV. It is for this reason—it is contended—that no account was taken in the Treaty of the water passing through lock No. 19 into the Zuid-Willemsvaart; to allow the same rule however to operate in connection with the Neerhaeren Lock would upset the equilibrium established by the Treaty. The dimensions of the Neerhaeren Lock are so much greater than those of lock 19 that 3,900 m³ of water are discharged into the Zuid-Willemsvaart every time that the lock is operated, and the average quantity of water passing through in the course of a day amounts to 1 m³ per second, which represents a very substantial addition to the ten m³ per second fixed by Article IV as the maximum quantity to be passed through the new intake. It is therefore argued on behalf of the Netherlands Government that, in interpreting the Treaty, no account should be taken of lock 19; but that in the case of the Neerhaeren Lock the discharge of lock-water should be regarded as an infraction of Article I.

The Court considers that neither the Belgian nor the Netherlands contention can be accepted in its entirety. When it is remembered that the provisions of the Treaty of 1863 were adopted in order to overcome certain actual difficulties connected with the feeding of the canals below Maestricht, it is seen to be impossible to isolate Article I, and to interpret it without reference to those difficulties. That Article has indeed to be interpreted in conjunction with the other articles, with which it forms a complete whole. To adopt the Belgian contention, according to which no lock, when used for navigation, and no volume of water discharged through a lock when being utilized for that purpose, could constitute an infraction of Article I, would open the door to the construction of works and the discharge of water in such quantities that the intentions of the Treaty would be entirely frustrated. On the other hand, to adopt the Netherlands contention and to hold that any discharge of water into the Zuid-Willemsvaart through the Neerhaeren Lock; instead of through the treaty feeder, must result in an infraction of Article I—irrespective of the consequences which such discharge of water might produce on the velocity of the current in the Zuid-Willemsvaart, or on the navigability of the joint section of the Meuse—would be to ignore the objects with which the Treaty was concluded.

If any distinction can be drawn between a lock of small dimensions, such as lock 19, and a large lock, that distinction must be based not simply on the difference between the respective dimensions of the two locks, but on the difference between the effects which they respectively produce. The Court would be prepared to consider that the use of the Neerhaeren Lock is contrary to the Treaty, notwithstanding the existence and functioning of lock 19, if it were shown that the use of the Neerhaeren Lock contravened the object of the Treaty, that is to say if it were shown that the use of the Neerhaeren Lock produced an excessive current in the Zuid-Willemsvaart or a deficiency of water in the Meuse.

The Court has not found any reason in the documents submitted to it which would lead it to conclude that the water discharged through the Neerhaeren Lock has set up an excessive current in the Zuid-Willemsvaart, or has depleted the Meuse to such an extent as to prejudice navigation on that river.

In the foregoing remarks, the question of the utilization of the side-channels of the Neerhaeren Lock for feeding the reach below the lock is not taken into consideration. The Court is only considering the normal use of this lock for purposes of navigation. There is no doubt that the use of these side-channels for feeding the lower reach would transform them into a feeder and would thus be contrary to the Treaty.

Another circumstance which must be borne in mind in connection with this submission I b is the construction of the Bosscheveld Lock by the Netherlands Government. That lock was completed and brought into use prior to the construction of the Neerhaeren Lock. Its dimensions are even greater than those of the Neerhaeren Lock. It is situated a short distance below the treaty intake of 1863, and it leads directly from the Meuse into the Zuid-Willemsvaart.

As regards the Bosscheveld Lock, as in the case of the Neerhaeren Lock, no evidence has been produced, and the Court finds no reason in the documents that have been produced, which would lead it to suppose that the use of the Bosscheveld Lock has caused effects, either in the Zuid-Willemsvaart or in the Meuse, which are inconsistent with the object of the Treaty of 1863.

During the oral proceedings before the Court, the construction of this lock was defended by the Netherlands Agent on the ground that the Treaty (Art. V, para. 2) entitles the Netherlands to increase the volume of water "taken from the Meuse at Maestricht". The Netherlands consider that, in virtue of these words, they are entitled to take water from the Meuse elsewhere than at the treaty feeder, and that in consequence the discharge of water into the Zuid-Willemsvaart through the Bosscheveld Lock is not contrary to the Treaty. This view cannot be accepted, for these same words "taken from the Meuse" are also used in the first paragraph of this same Article V, and also in Article IV, and they cannot be understood in any other sense than: the taking of water through the feeder referred to in Article I, to the exclusion of its withdrawal elsewhere.

Another reason against the acceptance of the Netherlands argument that Article V, paragraph 2, justifies the diversion from the Meuse of water discharged into the Zuid-Willemsvaart through the Bosscheveld Lock is that the right thus conferred on the Netherlands was that of taking supplementary water for their own use; this supplementary water has to be discharged through the lock at Loozen. The Netherlands Government has never contended that water flowing through the Bosscheveld Lock simply in connection with the passage of boats was to constitute this additional water intended to increase the share allotted to it by Article V of the Treaty, and that this water should consequently be restored to the Netherlands at Loozen. In reality this water is merged in the whole body of water in the Zuid-Willemsvaart system; it is of common benefit to the navigation of both countries, and it increases the Belgian quota for irrigation and for the feeding of the Belgian canals.

The Court cannot refrain from comparing the case of the Belgian lock with that of the Netherlands lock at Bosscheveld. Neither of these locks constitutes a feeder, yet both of them discharge their lock-water into the canal, and thus take part in feeding it with water otherwise than through the treaty feeder, though without producing an excessive current in the Zuid-Willemsvaart. In these circumstances, the Court finds it difficult to admit that the Netherlands are now warranted in complaining of the construction and operation of a lock of which they themselves set an example in the past.

Accordingly, as has been explained above, in the absence of evidence as to the effects which the use of the Neerhaeren Lock produces on the current in the Zuid-Willemsvaart, or on the Meuse itself, the Court does not consider that the normal use of this lock is inconsistent with the Treaty. The Court is also of opinion that there is no ground for treating this lock less favourably than the Netherlands lock at Bosscheveld. It is thus unable to accord to the Netherlands Government the benefit of its submission.

Submission I *b* must, therefore, be rejected.

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The third claim of the Netherlands Government which is formulated in submission I *c* of the Netherlands Memorial prays the Court

“To adjudge and declare that:

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(*c*) Belgium's project of feeding a section of the Hasselt Canal with water taken from the Meuse elsewhere than at Maestricht is contrary to the said Treaty.”

This claim of the Netherlands Government is fundamentally concerned with the construction and putting into operation of the Albert Canal from Liège to Antwerp, though that canal is not mentioned by name. For the line of the Albert Canal, a broad and deep canal of a total length of 125 kilometres, makes use for a certain distance in its course towards Antwerp, between the so-called Curange Lock and the so-called Quaedmehelen Lock, of the bed of the old Hasselt Canal which branches off the Canal de la Campine.

The Netherlands do not contend that the intake at Liège-Monsin which feeds the Albert Canal, is in itself contrary to the said Treaty, or that the Treaty applies to the whole of the Albert Canal.

The line of argument of the Netherlands Government is that when the Albert Canal is brought into operation, the old Hasselt Canal, i.e. that part of it henceforward comprised in the Albert Canal, will be fed, like the latter, with water taken from the Meuse at Liège-Monsin, that is to say elsewhere than at the treaty feeder. The situation resulting from the bringing into use of this section of the Albert Canal would be contrary to the Treaty.

The Court finds nothing either in the arguments of the Netherlands or in the text of the Treaty of 1863 which would prevent either the Netherlands or Belgium from making such use as they may see fit of the canals covered by the Treaty in so far as concerns canals which are situated in Netherlands or Belgian territory, as the case may be, and do not leave that territory. As regards such canals, each of the two States is at liberty, in its own territory, to modify them, to enlarge them, to transform them, to fill them in and even to increase the volume of water in them from new sources, provided that the diversion of water at the treaty feeder and the volume of water to be discharged therefrom to maintain the normal level and flow in the Zuid-Willemsvaart is not affected.

The question whether in fact it is true that, between Hasselt and Quaedmechelen, the old canal is only fed with water from the River Demer, as maintained by Belgium, or also with water coming from the Canal de la Campine which comes in turn from the Zuid-Willemsvaart, as maintained by the Netherlands, is in reality irrelevant.

No matter whence the water supplying the old Hasselt Canal is obtained, Belgium is not prohibited from using that canal as she may see fit, from transforming it or from in effect abolishing a portion of it by more or less merging it in the new Albert Canal which has its own water supply.

The contention of the Netherlands Government is invalidated by the singular result to which it would lead in practice. For it would amount to criticizing Belgium for having made the new canal follow the line of the old canal. She need only have sited the new canal a few yards to one side and have abandoned this section of the old canal and then, according to the contention of the Netherlands, she would not have contravened the Treaty. No such effect can have been intended by the contracting Parties, nor can it result from a proper interpretation of the terms of the Treaty.

Submission I c must therefore be rejected.

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The fourth claim of the Netherlands Government which is formulated in submission I *d* of the Netherlands Memorial prays the Court:

“To adjudge and declare that:

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(*d*) Belgium's project of feeding the section of the canal joining the Zuid-Willemsvaart to the Scheldt between Herenthals (Viersel) and Antwerp with water taken from the Meuse elsewhere than at Maestricht, is contrary to the said Treaty.”

This claim is similar to the preceding one in regard to the Hasselt Canal.

From Viersel to Antwerp, the course of the Albert Canal coincides with the latter part of the old Canal de la Campine which branches off the Zuid-Willemsvaart and is therefore comprised in the system of canals situated below Maestricht and fed from the treaty feeder.

The grounds on which the Belgian Government is criticized in the Netherlands Memorial in this connection are the same as in the case of the Hasselt-Quaedmechelen section of the Albert Canal which coincides with a portion of the old Hasselt Canal.

The reasons which have led the Court to reject the contention of the Netherlands Government in the latter case also apply in this case.

It is true that it is not denied that this section of the old Canal de la Campine which is joined at Wyneghem near Antwerp by the Turnhout Canal, is fed with water originally coming from the Zuid-Willemsvaart. But, as has been stated, the origin of the water feeding the canals comprised in the system contemplated by the Treaty has no bearing on the right of Belgium, or of the Netherlands, to make such use as they may see fit of these canals when situated exclusively in their own territory, provided that the régime governing the diversion of water at the treaty feeder and the volume of water to be discharged by that feeder to secure at all times the normal level and flow of water in the Zuid-Willemsvaart is not thereby affected.

The Court accordingly considers that the criticism made in the Netherlands Memorial is no more justified in the case of the Herenthals (Viersel) Canal than in the case of the Hasselt Canal. The submission made in the Netherlands Memorial must therefore be rejected.

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In a second series of submissions at the end of their Memorial, the Netherlands Government pray the Court :

“To order Belgium

(a) to discontinue all the works referred to under I (a) and to restore to a condition consistent with the Treaty of 1863 all works executed in breach of that Treaty ;

(b) to discontinue any feeding held to be contrary to the said Treaty and to refrain from any further such feeding.”

Since the Court has arrived at the conclusion that there is no justification for the various complaints made by the Netherlands Government against the Belgian Government in the submissions of the former Government which have been examined above, it can only reject the claim presented by the Netherlands Government in respect of penalties to be imposed upon the Belgian Government and is not called upon to examine this claim.

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Having rejected the four submissions made by the Netherlands as Applicant in the principal suit, the Court considers that there is no occasion for it to pass upon the four alternative submissions presented by the Belgian Government in its Rejoinder. These submissions were only presented “in case the Court should be unable to find in accordance with the submissions of the Respondent”. The submissions of the Netherlands having been rejected, the Court considers that these alternative submissions have ceased to have any object, and this view is confirmed by what was said by the Belgian Agent at the hearing on May 12th, 1937.

* * *

The Belgian Government, for its part, formulates in its Counter-Memorial a counter-claim alleging : (1) that the Netherlands Government has committed a breach of the Treaty of 1863 by constructing the Borgharen barrage on the Meuse below Maestricht ; (2) that the Juliana Canal constructed by the Netherlands alongside to the Meuse below Maestricht from Limmel to Maasbracht, is subject, as regards its water supply, to the same Treaty.

As this claim is directly connected with the principal claim, it was permissible to present it in the Counter-Memorial.

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In its first submission, regarding the Borgharen barrage, the Belgian Government prays the Court,

“To adjudge and declare that :

1° The Borgharen barrage has been constructed in breach of the stipulations of this same Treaty which is alleged by the Netherlands Government to have been disregarded by the Belgian Government as regards certain stipulations ; that is to say, that the local situation at Maestricht provided for by the Treaty of 1863 has been altered by the unilateral decision of the Netherlands Government ; that this alteration has rendered the proper application of the Treaty impossible, because the level of the Meuse has been raised by the Borgharen barrage and the water-gauge which had been placed there in accordance with the Treaty to enable the diversion of water to be regulated in accordance with the level of the water has been submerged”.

This submission formulated by the Belgian Government contains both the claim itself and the grounds adduced in support of it.

In the first place, according to the Belgian Government, the local situation at Maestricht has, contrary to the Treaty, been altered by the Netherlands Government without previous agreement with the Belgian Government.

Article IV, paragraph 2, of the Treaty runs as follows :

“The normal low level, which at present varies between the 30 and 40 centimetre marks above zero on the gauge at the Maestricht bridge, corresponds to a minimum depth of water of seventy (70) centimetres between Maestricht and Venlo.”

It is clear that the construction of the Borgharen barrage had the effect—it could scarcely have been otherwise—of raising the level of the Meuse above the barrage, with the result that no matter what may have been the low level of the river, as actually determined in 1863, the volume of water discharged by the feeder, according to the height of the Meuse, is always the maximum volume.

The Belgian Government does not contend that, by the raising of the level of the Meuse resulting from the construction of the Borgharen barrage, a volume of water greater than the maximum fixed is discharged from the feeder. What it does contend is that the situation has been altered without its consent.

Nowhere in the Treaty, however, is to be found a provision forbidding the Netherlands from changing the depth of water in the Meuse at Maestricht without the consent of Belgium, provided that neither the discharge of water through the feeder nor the volume which it must or can supply, nor again the

current in the Zuid-Willemsvaart are thereby affected. It is subject to this condition, and not at their arbitrary discretion, that the Netherlands are entitled, under the Treaty of 1863, to dispose of the waters of the Meuse at Maestricht.

The Belgian Government alleges that the raising of the level of the Meuse at Maestricht has submerged the gauge placed, in accordance with Article IV, paragraph 3, at the entrance to the feeder in order to enable the volume of water to be passed through the feeder to be checked, in accordance with the height of the low water level. But the submerging of the mark on this gauge would only be subject to criticism if, because it was no longer possible to verify the volume of water discharged by the feeder, this volume in fact exceeded the maximum fixed by the Treaty. This however does not appear to be the case, nor does the Belgian Government contend that it is so.

Lastly, the Belgian Government, in the course of its argument, if not in its submissions, has contended that the Netherlands Government, by means of the Borgharen barrage, has interfered with the navigability of the Meuse below Maestricht, that is to say, that part of the river common to both States.

The Netherlands allege in reply on this contention that it followed from Article V, paragraph 2, and Article XI of the Treaty of 1863, that Belgium had relinquished her interest in the navigation of the common section of the Meuse and that the interests of navigation in that section were left to the discretion of the Netherlands. On the contrary, Article IX of the Treaty affords proof that Belgium did not relinquish her interest in the joint section of the Meuse. For that Article expressly provides for the carrying out of works for the improvement of the navigability of the Meuse between Maestricht and Venlo and for the financial participation of Belgium in the carrying out of these works.

On the other hand, in alleging that the navigability of the common section of the Meuse had suffered, the Belgian Government should, in support of its contention, have produced evidence regarding the intensity of the traffic and of the injurious effect upon it of the barrage. Belgium has not produced this evidence. It would probably have been somewhat difficult for her to do so, because in actual fact, from the point of view of navigability, the joint section of the Meuse is no longer of much importance save for small local vessels and these only require a small depth of water. Barge traffic, under whatever flag, now has at its disposal the waterway provided by the Juliana Canal which is much better adapted to its needs.

The submission of the Belgian Government in regard to this question must therefore be rejected.

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The second submission in the counter-claim of the Belgian Government relates to the Juliana Canal and asks the Court

“To adjudge and declare that :

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2. The Juliana Canal, being a canal below Maestricht, within the meaning of Article I of the Treaty, is subject, as regards its water supply, to the same provisions as the canals on the left bank of the Meuse below Maestricht”.

The entrance of the Juliana Canal, a lateral canal of the Meuse, is on the river, in Netherlands territory a little below Maestricht, and the canal debouches at Maasbracht, also in Netherlands territory, a little below the point at which the Belgian frontier leaves the Meuse and the river ceases to be common to both countries. It is therefore beyond dispute, from a geographical point of view, that the Juliana Canal is situated below Maestricht. But it does not follow that it is, as the Belgian Government contends, “a canal below Maestricht within the meaning of Article I of the Treaty”.

The provision in Article I which stipulates that the new intake at Maestricht shall be “the feeder” for all “canals situated below that town”, and the consequential provision in Article IV, last paragraph, to the effect that “no further use shall be made of the intake at Hocht” imply by their very terms, if any indication were needed, that the feeder is situated on the left bank of the Meuse and that, in consequence, the canals which it has to feed are also on the left bank of the river. Moreover, the canals the feeding of which had occasioned difficulties, and which are referred to in the Treaty, are the Zuid-Willemsvaart itself and the canals which branch off from it and thus derive their supply of water from it. It is manifest that an intake situated on the left bank of the river cannot be regarded as intended to feed canals situated on the right bank. The latter cannot therefore come under the régime of water supply instituted by the Treaty.

The Juliana Canal, which is below Maestricht but is situated on the right bank, cannot therefore be considered or treated as “a canal below Maestricht within the meaning of Article I of the Treaty” according to the terms of the Belgian submission.

As the situation of the Treaty feeder on the left bank of the Meuse makes it impossible in practice to regard the Juliana Canal, situated on the right bank, as being subject to the same rules regarding its water supply as the canals on the left bank, the submission in the Belgian Counter-Memorial must necessarily be rejected.

As is stated in the Netherlands Government's submission, the Juliana Canal is not therefore, as regards its water supply, subject to the same provisions as the Zuid-Willemsvaart and the other canals on the left bank of the Meuse below Maestricht. But it in no way follows from this that the Treaty authorizes the Netherlands Government to use the water of the Meuse at Maestricht as it pleases for feeding the Juliana Canal. This argument, based on the theory that Belgium had relinquished interest in the navigation of the joint section of the Meuse, is, as has already been explained, inconsistent with the general plan of the Treaty.

The question of how the Juliana Canal is, in fact, at present supplied with water would only require to be considered if it were alleged that the method by which it is fed was detrimental to the régime instituted by the Treaty for the canals situated on the left bank. Belgium does not however allege that this is the case, and, moreover, the navigability of the joint section of the Meuse cannot be considered in this connection otherwise than it was regarded above, in connection with the Borgharen barrage.

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The Belgian Government has added to its two submissions, referred to above, a third submission praying the Court:

“3. To reserve the rights accruing to Belgium from the breaches so committed”.

As no violation of the Treaty of 1863 has been found by the Court to have been committed by the Netherlands Government, the reservation of rights requested by Belgium cannot be accorded.

FOR THESE REASONS,

In regard to the principal claim:

The Court, by ten votes to three,

Rejects the various submissions of the Memorial presented by the Netherlands Government in pursuance of its Application dated August 1st, 1936.

As regards the counter-claim presented in the Belgian Counter-Memorial, dated January 28th, 1937:

The Court, by ten votes to three,

Rejects the submissions of the aforesaid counter-claim.

The present Judgment has been drawn up in French in accordance with the provisions of Article 39, paragraph 1, of the Court's Statute, the Parties having declared themselves agreed that the whole case should be conducted in French.

Done at the Peace Palace, The Hague, this twenty-eighth day of June, one thousand nine hundred and thirty-seven, in three copies, one of which will be deposited in the archives of the Court while the others will be transmitted to the Government of the Netherlands and to the Government of Belgium, respectively.

(Signed) J. G. GUERRERO,

President.

(Signed) J. LÓPEZ OLIVÁN,

Registrar.

M. ANZILOTTI declares that he is unable to concur in the judgment given by the Court and, availing himself of the right conferred upon him by Article 57 of the Statute, has appended to the judgment the separate opinion which follows.

M. ALTAMIRA and Jonkheer VAN EYSINGA declare that they are unable to concur in all the findings of the Court's judgment and have appended to the judgment the separate opinions which follow.

Sir CECIL HURST, Vice-President of the Court, declares that he is unable to concur in the findings of the Court's judgment in regard to the counter-claim of the Belgian Government and has appended to the judgment the separate opinion which follows.

Mr. HUDSON, whilst concurring in the judgment, has appended certain observations.

M. DE VISSCHER declares that he is unable to concur in the findings of the Court's judgment in regard to the counter-claim of the Belgian Government.

(Initialled) J. G. G.

(Initialled) J. L. O.